



DEPARTMENT OF THE NAVY

NAVAL UNDERSEA WARFARE CENTER DIVISION
1176 HOWELL STREET
NEWPORT RI 02841-1708

IN REPLY REFER TO

J&A Number: 25044.0

PID Number: N66604-25-SIMACQ-NPT-10-0173

JUSTIFICATION AND APPROVAL FOR USE OF OTHER THAN FULL AND OPEN COMPETITION UNDER FAR SUBPART 13.5, SIMPLIFIED PROCEDURES FOR CERTAIN COMMERCIAL PRODUCTS AND COMMERCIAL SERVICES

1. Contracting Activity.

Naval Undersea Warfare Center Division Newport, Code 02.

2. Description of the Action Being Approved.

Naval Undersea Warfare Center Division, Newport (NUWC DIVNPT), Code 104, requests to solicit and award a Firm Fixed Price (FFP) contract to procure Mathworks products and services. The purchase of MATLAB and Simulink software, toolsets, training, software maintenance and updates, and consultation services will be used command wide and be centrally provisioned and managed by Code 104.

3. Description of Supplies/Services.

<u>Item Description</u>	<u>Part #</u>	<u>Qty.</u>	<u> </u>	<u> </u>
Designated Computer Perpetual License	TBD	400		
Standard Annual License	TBD	100		
Toolbox and software application yearly maintenance	TBD	1		
Tool boxes	TBD	1		

4. Statutory Authority Permitting Other Than Full and Open Competition.

The proposed action may specify sole source components using the procedures in FAR Subpart 13.501(a)(1)(ii) and in accordance with 41 U.S.C. 1901. Only one responsible source and no other supplies or services will satisfy agency requirements as implemented by FAR 6.302-1(a)(2)(ii).

5. Rationale Justifying Use of Cited Statutory Authority.

Continuous procurement of the MATLAB ensures NUWCDIVNPT Code 104 maintains a homogenous environment that integrates with the existing network infrastructure. MATLAB is a proprietary software development platform. It uses a programming language exclusive to the MATLAB development environment, and therefore has no compatible alternative products in the market. If we switched to a different software, the current capabilities built with MATLAB underlying codes would not have the support required to maintain them. Engineers would need to be proficiently trained to create and adjust to new processes in a new coding language. After training, they would then need to program functions from scratch using programming languages like Python in order to replicate the functions. Many of the functions are highly complex and would require large teams of expert developers to reproduce what is easily packaged and deployed in MATLAB.

The cost to transition to a different manufacturer would cost NUWCDIVNPT an approximate [REDACTED] over a 15-month period due to costs associated with retraining the engineering staff and retrofitting decades of work on our combat system. The unavailability of MATLAB across the command would result in downtime, schedule slips, and inefficiencies across multiple departments and programs at NUWCDIVNPT and the fleet in general.

<i>Element</i>	<i>[REDACTED]</i>	<i>Schedule Impact</i>
<i>Procurement & Installing MathWorks Alternative</i>	[REDACTED]	<i>3 months</i>
<i>Labor in training for new App</i>	[REDACTED]	<i>12 months</i>
[REDACTED]	<i>\$ [REDACTED]</i>	<i>15 months</i>

Therefore, Code 104 requires the procurement of Mathworks products and services including MATLAB and Simulink software, toolsets, training, software maintenance and updates, and consultation services. Mathworks will be used command wide and be centrally provisioned and managed by Code 104.

6. Description of Efforts Made to Solicit Offers from as Many Offerors as Practicable.

A combined synopsis and solicitation notice will be published publicly on the Government-wide Point of Entry (GPE), SAM.gov on 27 March 2025. The notice will state the intention of NUWCDIVNPT to award a contract on a sole source basis to Mathworks. and it will invite all responsible sources to submit a capability statement for the consideration of the Government. No additional market research was conducted because it is not practicable, for the reasons discussed in paragraph 5 above, for any company other than Mathworks to fulfill this requirement. If a responsible source challenges the Government's intention to award a contract on a sole source basis, it will be brought to the attention of the Competition Advocate.

7. Determination of Fair and Reasonable Cost.

The contracting officer will conduct price and/or cost analysis using FAR Parts 13.106-3 and/or 15.404-l(b) and 15.404-l(c) methods, in accordance with FAR 13.003(g)(2), to determine the prices fair and reasonable prior to contract award.

8. Actions to Remove Barriers to Future Competition.

For the reasons set forth in Paragraph 5, NUWCDIVNPT has no plans at this time to compete future contracts for the types of supplies/services covered by this document. If another potential source emerges, NUWCDIVNPT will assess whether competition for future requirements is feasible.

CERTIFICATIONS AND APPROVAL

TECHNICAL/REQUIREMENTS CERTIFICATION

I certify that the facts and representations under my cognizance which are included in this Justification and its supporting acquisition planning documents, except as noted herein are complete and accurate to the best of my knowledge and belief.

[REDACTED]

[REDACTED] [REDACTED] [REDACTED] [REDACTED]

[REDACTED]

[REDACTED]

[REDACTED] [REDACTED] [REDACTED] [REDACTED]

Upon the basis of the above justification, I hereby approve, as Level Above Contracting Officer, the solicitation of the proposed procurement(s) described herein using other than full and open

[REDACTED]

[REDACTED] [REDACTED] [REDACTED] [REDACTED]